

STATE OF NEW YORK

8635 --B

IN SENATE

January 7, 2026

Introduced by Sens. FERNANDEZ, CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law and the public health law, in relation to a special needs assisted living demonstration program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 461-l of the social services law
2 is amended by adding a new paragraph (o) to read as follows:

3 (o) Notwithstanding paragraphs (m) and (n) of this subdivision, as
4 well as article forty-six-B of the public health law, the commissioner
5 shall establish a special needs assisted living demonstration program to
6 authorize up to three assisted living programs throughout the state to
7 serve individuals with special needs, including, but not limited to,
8 individuals with dementia or cognitive impairments. Each participating
9 assisted living program shall submit information as determined by the
10 commissioner to analyze the feasibility, efficiency and the potential
11 for cost savings associated with providing care to the population under
12 the demonstration program. No later than two years after the effective
13 date of this paragraph, the commissioner shall submit a report to the
14 governor, the temporary president of the senate and the speaker of the
15 assembly analyzing the cost and efficiency of the special needs assisted
16 living demonstration program.

17 § 2. Subdivision 6 of section 3614 of the public health law is amended
18 by adding a new paragraph (d) to read as follows:

19 (d) The commissioner shall adjust medical assistance rates of payment
20 for services provided by assisted living programs participating in a
21 demonstration program pursuant to paragraph (o) of subdivision three of
22 section four hundred sixty-one-l of the social services law to serve
23 individuals with special needs, including, but not limited to, individ-
24 uals with dementia or cognitive impairments. Such rates shall be suffi-
25 cient to cover the provision of specialized services, staffing levels,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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- 1 staff education and training, work experience, professional affiliations
- 2 or special characteristics relevant to serving persons with special
- 3 needs, and any environmental modifications that have been made or will
- 4 be made to protect the health, safety and welfare of such persons.
- 5 § 3. This act shall take effect immediately.